

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 22-03

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ONE BANANA NORTH AMERICA CORP.,  
COMPLAINANT

v.

HAPAG-LLOYD AG, and  
HAPAG-LLOYD (AMERICA) LLC,  
RESPONDENTS.

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**JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. § 502.141(h) and the January 26, 2022 Honorable Judge Writh's Initial Order ("Initial Order"), Complainant One Banana North America Corp. ("OBNA") and Respondents Hapag-Lloyd AG, and Hapag-Lloyd (America) LLC (together "HL" and, collectively with OBNA, the "Parties"), by their respective undersigned counsel, have conferred and submit this Joint Status Report as set forth below.

**Initial Disclosures**

The Parties have exchanged initial disclosures as required by 46 C.F.R. § 502.141(b) and the Initial Order.

**CADRS Mediation**

The counsel for Parties separately contacted and caucused with the CADRS whether this matter may be resolved through mediation. Counsel for both parties indicated the following:

- 1) The parties are currently engaged in settlement discussions;

2) While both parties are open to mediation in the future, it is not necessary to schedule a mediation at this time; and

3) Should the parties feel that mediation would be helpful in the future, they will contact CADRS to request a formal mediation.

**Discovery Schedule**

The parties discussed and agreed on the following discovery schedule.

| Event                                                                                                                 | Deadline         |
|-----------------------------------------------------------------------------------------------------------------------|------------------|
| Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”). | April 1, 2022    |
| Submission of disputes concerning scope of initial RFPs (after counsel confer directly).                              | April 15, 2022   |
| Target for substantial completion of productions of documents and ESI in response to initial RFPs.                    | May 13, 2022     |
| Target for exchange of privilege logs.                                                                                | May 20, 2022     |
| Target to complete depositions of fact witnesses.                                                                     | June 20, 2022    |
| Disclosure of initial expert reports.                                                                                 | June 27, 2022    |
| Last day to serve interrogatories, requests for admission, and final RFP.                                             | July 5, 2022     |
| Disclosure of rebuttal expert reports                                                                                 | July 15, 2022    |
| Complete expert depositions                                                                                           | July 29, 2022    |
| Close of discovery                                                                                                    | August 8, 2022   |
| Motions for summary decision due                                                                                      | October 14, 2022 |

## **Protective Order**

The Parties discussed treatment of confidential documents and information exchanged and used in this case and agreed that a relevant stipulation would be appropriate in this case. The parties are in the process of preparing the stipulation and anticipate finalizing it before any discovery materials are exchanged.

Dated: March 28, 2022  
Washington, D.C.

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